

26NWCV00005 26NWCV00005

County: los-angeles

Division: Civil Law and Motion

Department: L

Hearing date: 2026-07-28

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Case Number: 26NWCV00005 Hearing Date: July 28, 2026 Dept: L

EDWIN SONG vs GENESIS MOTOR AMERICA LLC

CASE NO.: 26NWCV00005

HEARING: July 28, 2026 @ 9:30

a.m.

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REVISED TENTATIVE

ORDER

Defendant Genesis Motor

America's Motion to Compel Arbitration is DENIED.

Defendant is ordered to file
an answer within 40 days of this order.

Defendant to give notice.

Background

This is a lemon law action. On January
2, 2026, Plaintiff Edwin Song ("Plaintiff") filed this action against Defendant
Hyundai Motor America and Does 1 to 10.

On January 8, 2026, Plaintiff
filed the First Amended Complaint (FAC) against Defendant Genesis Motor America

("Defendant") and Doe 1 to 10. The FAC alleges that Plaintiff purchased a 2022 Genesis GV70 ("Subject Vehicle"), whereby Defendant, the manufacturer of the vehicle, "issued a[n] express warranty." (FAC, ¶ 8.) The Subject Vehicle manifested certain defects, including, but not limited to, transmission, electrical, structural, suspension, and steering system defects. The FAC alleges the following causes of action: 1) Violation of Song-Beverly Act – Breach of Express Warranty, 2) Violation of Song-Beverly Act – Breach of Implied Warranty, and 3) Violation of the Song-Beverly Act section 1793.2.

Defendant now moves to compel arbitration and requests to stay the action.

Evidentiary Objections

Plaintiff's Evidentiary Objection is sustained as to No. 1.

Defendant's Evidentiary Objections to the Declaration of Edwin Song are overruled as to Nos. 1 to 5.

Defendant's Evidentiary Objections to the Declaration of Daniel Gopstein are sustained as to Nos. 1 to 3.

Legal Standard

Parties may be compelled to arbitrate a dispute upon the court finding that: (1) there was a valid agreement to arbitrate between the parties; and (2) said agreement covers the controversy or controversies in the parties' dispute. (Code Civ. Proc., § 1281.2; see also *Omar v. Ralphs Grocery Co.* (2004) 118 Cal.App.4th 955, 961.) A party petitioning to compel arbitration has the burden of establishing the existence of a valid agreement to arbitrate and the party opposing the petition has the burden of proving, by a preponderance of the evidence, any fact necessary to its defense. (*Banner Entertainment, Inc. v. Superior Court* (1998) 62 Cal.App.4th 348, 356-57.)

"If a court of competent jurisdiction . . . has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which

such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.” (Code Civ. Proc., § 1281.4.)

Discussion

Defendant moves to compel arbitration under the 2022 Owner’s Handbook & Warranty Information (“Warranty Booklet”), which contains the following arbitration provision, in relevant part:

“PLEASE
READ THIS SECTION IN ITS ENTIRETY AS IT AFFECTS YOUR RIGHTS. THIS SECTION DOES NOT PRECLUDE YOU FROM FIRST PURSUING ALTERNATIVE DISPUTE RESOLUTION THROUGH BBB AUTO LINE AS DESCRIBED IN THE “ALTERNATIVE DISPUTE RESOLUTION” PROVISION IN SECTION 3 OF THIS HANDBOOK.

If
you purchased or leased your Genesis vehicle in the State of California, you and we, Genesis Motor America, each agree that any claim or disputes between us (including between you and any of our affiliated companies) related to or arising out of your vehicle purchase, advertising for the vehicle, use of your vehicle, the performance of the vehicle, any service relating to the vehicle, the vehicle warranty, representations in the warranty, or the duties contemplated under the warranty, including without limitation claims related to false or misleading advertising, unfair competition, breach of contract or warranty, the failure to conform a vehicle to warranty, failure to repurchase or replace your vehicle, or claims for a refund or partial refund of your vehicle's purchase price (excluding personal injury claims), but excluding claims brought under the Magnuson-Moss Warranty Act, shall be resolved by binding arbitration at either your or our election, even if the claim is initially filed in a court of law.”

(Williams Decl., ¶ 3, Exh. A.)

Defendant argues that the arbitration provision covers Plaintiff’s claims, which involve the performance of the vehicle and its warranty. Defendant argues that the arbitration provision in the Warranty Booklet is a valid arbitration agreement because the

FAC alleges that Plaintiff purchased the Subject Vehicle in California with an express warranty. (FAC, ¶ 8.) The Warranty Booklet contains an enforceable arbitration provision, and thus, this action must be compelled to arbitration and proceedings should be stayed pending arbitration.

In opposition, Plaintiff argues the agreement is unenforceable because 1) the Warranty Booklet is not properly authenticated, and 2) Plaintiff did not expressly assent to the Warranty Booklet. As to the authentication issue, to the extent that Defendant relies on *Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215 to argue that the motion need not authenticate the clause, that case involved a verified petition, and the arbitration clause was authenticated by a custodian of records. Plaintiff cites *Gamboa v. Northeast Comm. Clinic*, (2021) 72 Cal. App. 5th 158 (“*Gamboa*”) regarding the parties’ shifting burden to show an arbitration agreement exists or does not exist. Here, Plaintiff first argues that Defendant has failed to present admissible evidence of the arbitration clause—Defense counsel has no personal knowledge of the Warranty Booklet. Further, Plaintiff declares that he “was never personally provided with a copy of any [Warranty Booklet] when he purchased the Subject Vehicle.” (Song Decl., ¶ 5.)

Further, Plaintiff cites to *Norcia v. Samsung Telecommunications Am., LLC*, (“*Norcia*”) 845 F.3d 1279 and *Knutson v. Sirius XM Radio Inc.*, (“*Knutson*”) (2014) 771 F.3d 559 to argue that “a manufacturer may not rely on an arbitration clause surreptitiously inserted into a warranty manual.” (Mot., 10:22-23.)

In reply, Defendant compares this case to *Kostandian v. American Honda Motor Co., Inc.* (“*Kostandian*”) (2026) 120 Cal.App.5th 872, which was recently published in April 2026. In that case, the plaintiff made similar arguments that Plaintiff makes here—specifically, that Plaintiff did not receive the warranty booklet until after the sale was completed, and thus, there was no mutual assent. (Id. at p. 884.) The appellate court rejected this argument, finding that such argument was at odds with his pleadings, which alleged that “representations were made [to the plaintiff] in Manufacturer's New Vehicle Limited Warranty.” (Ibid.) Plaintiff makes similar allegations in the FAC that he received a written warranty, and thus, Plaintiff cannot deny mutual assent. (See FAC, ¶¶ 8-9.) Further, the appellate court reversed the trial's court's reliance on the *Norcia* and *Knutson* cases in ruling that the defendant had failed to establish mutual assent. (Id.

at pp. 883-884.) Defendant asserts that Plaintiff cannot rely on such authority in opposing this Motion.

As to the authentication issue, courts apply a three-step burden-shifting process to determine whether an agreement to arbitrate exists. (See *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 164.) “First, the moving party bears the burden of producing ‘prima facie evidence of a written agreement to arbitrate the controversy.’” (Id. at p. 165, quoting *Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413.) The moving party can meet this initial burden by attaching a copy of the arbitration agreement purporting to bear the opposing party’s signature or setting forth the agreement’s provisions in the motion. (Ibid.) “For this step, ‘it is not necessary to follow the normal procedures of document authentication.’” (Ibid., quoting *Condee v. Longwood Management Corp.* (“*Condee*”) (2001) 88 Cal.App.4th 215, 218.) “[I]n the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement. The opposing party can do this in several ways. For example, the opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement.” (Ibid.) “[I]n the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties. The burden of proving the agreement by a preponderance of the evidence remains with the moving party.” (Ibid.)

Here, Defendant has not submitted a signed version of the provision with the Motion. Thus, Defendant has not met its initial burden under *Gamboa*. In *Gamboa*, the purported agreement to arbitrate was signed by the other party. (*Gamboa*, supra, 72 Cal.App.5th at p. 167.) Further, Defense counsel’s declaration is insufficient to properly authenticate the Warranty Booklet. Even if the burden shifted to Plaintiff and back to Defendant under *Gamboa*, Defendant has not offered admissible evidence of an agreement to arbitrate. Specifically, Defendant provides no declaration of a custodian of records authenticating the Warranty Booklet in the reply.

Either way, the Court finds Defendant has failed to establish that the parties mutually assented to arbitration based on the arbitration provision in the Warranty Booklet. “General

principles of contract law determine whether the parties have entered a binding agreement to arbitrate.” (Craig v. Brown & Root, Inc. (2000) 84 Cal.App.4th 416, 420.) “An essential element of any contract is the consent of the parties, or mutual assent.” (Donovan v. RRL Corp. (2001) 26 Cal.4th 261, 270.) Defendant fails to provide any evidence to show that Plaintiff agreed to be bound by the arbitration provision in the Warranty Booklet, such as via a signed version of the provision. Defendant provides no evidence that Plaintiff personally received the Warranty Booklet or the arbitration provision. For example, Defendant provides no declaration by an employee or agent stating that Plaintiff was notified of the Warranty Booklet or the arbitration provision contained within it at the time of purchase. The Court emphasizes the difference between Plaintiff’s knowledge of the warranty terms and Plaintiff’s knowledge of the arbitration provision within the Warranty Booklet.

The Court further distinguishes this case from the Kostandian case. Firstly, in the underlying proceedings, the plaintiff in that case “never disputed he had an existing arbitration agreement with American Honda Motor in the warranty booklet” and never presented evidence of such. (Kostandian, supra, 120 Cal.App.5th at p. 883.) Here, Plaintiff has presented evidence disputing the existence of an arbitration agreement. Plaintiff declares that he “was never personally provided with a copy of the Warranty Booklet” and was not given notice of any post-sale arbitration agreement within the Booklet. (Song Decl., ¶ 5.) Plaintiff further declares he did not sign any post-sale arbitration agreement. (Song Decl., ¶ 6.) Plaintiff declares that, in alleging his statutory warranty claims under the Song-Beverly Act, he “relied exclusively on the representations made by Defendant’s authorized dealerships, both prior to and after my purchase during each of the Subject Vehicle’s repair visits, as well as publicly available information concerning Defendant’s express warranties for 2022 Genesis GV70 vehicles, like the Subject Vehicle.” (Song Decl., ¶ 7.) Plaintiff thus clearly disputes mutual assent to any arbitration agreement.

Further, in Kostandian, to establish mutual assent to the arbitration provision within the warranty booklet, the defendant submitted a “final inspection at delivery sheet, showing [the plaintiff] provided his signature and initials confirming his receipt of the owner’s manual and warranty information.” (Kostandian, supra, 120 Cal.App.5th at p. 882.) The appellate court found that, any argument that plaintiff did not receive the warranty booklet until after the sale was

completed were contradicted by this signed confirmation document as well as the complaint's allegations 1) referring to violations of written warranties as "fully outlined in the Manufacturer's Warranty Booklet" and 2) that "representations were made [to plaintiff] in Manufacturer's New Vehicle Limited Warranty." (Id. at pp. 883-884.) In contrast, here, Plaintiff signed no similar confirmation document affirming that he received the Warranty Booklet at the time of sale. Further, there is no explicit reference to the Warranty Booklet in the FAC. Thus, under these facts, the Court finds that Kostandian does not apply.

Therefore, Defendant has failed to meet its burden to show, through admissible evidence, that a valid agreement to arbitrate between the parties exists.

Accordingly, Defendant's Motion to Compel Arbitration is denied.